

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 41-003
Amendments to Title 5 of the Chickasaw Nation Code
(Jury Payment)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for criminal procedure and desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature authorizes and approves that the provisions of this Resolution shall become effective upon publication in the Chickasaw Nation Code.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 5, Chapter 6, Section 5-601.1, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red and deletions are stricken through):

SECTION 5-601.1

TRIAL BY JURY OR BY THE COURT.

A. All trials of offenses shall be by the Court without a jury unless the Defendant ~~files a request for a jury trial and pays a one hundred dollar (\$100) jury fee~~ not less than ten (10) business days before ~~prior to the date set for trial. A Judge may waive the jury fee if the Defendant shows that he is without sufficient funds to pay the jury fee.~~

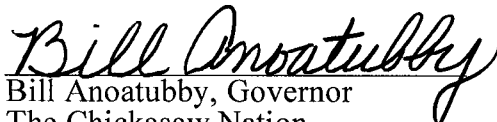
B. Juries shall be composed of six (6) members with one (1) alternate if an alternate juror is deemed advisable by the Court.

C. In a case tried without a jury, the Judge shall make a general finding of guilt or innocence and shall, upon request of any party, make specific findings which may be embodied in a written decision.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on December 15, 2023, by a vote of 12 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 15 2023

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Explanation:

This resolution amends the Chickasaw Nation Code to remove the fee associated with a jury trial in a criminal case. A defendant will no longer have to pay a fee to assert his or her right to a jury trial.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature